

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30				1. REQUISITION NUMBER See Schedule		PAGE OF 1 20	
2. CONTRACT NO.		3. AWARD/ EFFECTIVE DATE	4. ORDER NUMBER		5. SOLICITATION NUMBER 127EAY26Q0058		6. SOLICITATION ISSUE DATE 05/06/2026
7. FOR SOLICITATION INFORMATION CALL:		a. NAME DANIELLE DAWSON			b. TELEPHONE NUMBER (No collect calls)		8. OFFER DUE DATE/LOCAL TIME 05/13/2026 1300 PD
9. ISSUED BY USDA-FS CSA SOUTHWEST 1 333 BROADWAY BLVD SE ALBUQUERQUE NM 87102-3498				CODE 7EAY	10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☒ SET ASIDE: 100.00 % FOR: ☒ SMALL BUSINESS ☐ HUBZONE SMALL BUSINESS ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS (SDVOSB) ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ☐ ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB) ☐ 8(A) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): 624230 SIZE STANDARD: \$41.5		
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☒ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A RATED ☐ ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)		13b. RATING 14. METHOD OF SOLICITATION ☒ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ REQUEST FOR PROPOSAL (RFP)	
15. DELIVER TO Multiple Destinations		CODE	16. ADMINISTERED BY USDA-FS CSA SOUTHWEST 1 333 BROADWAY BLVD SE ALBUQUERQUE NM 87102-3498				
17a. CONTRACTOR/ OFFEROR		CODE	FACILITY CODE	18a. PAYMENT WILL BE MADE BY			
TELEPHONE NO.		CODE	CODE 7EAY				
☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER				18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM			
19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES			21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	Project Title: Pre-Season SCBA Physicals & Fit Tests for the Shasta-Trinity, Modoc, and Klamath National Forests. Project Description: Pre-season SCBA Physicals/Fit testing and Spirometry testing under the mandatory SCBA Program for engine personnel on the Shasta-Trinity, Modoc, and Klamath National Forests. ----- (Use Reverse and/or Attach Additional Sheets as Necessary)						
25. ACCOUNTING AND APPROPRIATION DATA						26. TOTAL AWARD AMOUNT (For Government Use Only)	
☒ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA						☒ ARE ☐ ARE NOT ATTACHED.	
☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA						☐ ARE ☐ ARE NOT ATTACHED.	
☒ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN <u>1</u> COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED.				☐ 29. AWARD OF CONTRACT: REFERENCE _____ OFFER DATED _____. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:			
30a. SIGNATURE OF OFFEROR/CONTRACTOR				31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)			
30b. NAME AND TITLE OF SIGNER (Type or print)		30c. DATE SIGNED		31b. NAME OF CONTRACTING OFFICER (Type or print)		31c. DATE SIGNED	
				SARAH J. HILL			

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
0001	Delivery: 09/01/2026 Period of Performance: 05/18/2026 to 09/01/2026 SCBA New User Physicals & Health Screenings Shasta-Trinity National Forest Requisition No: 1164368 Delivery Location Code: 9A28 USDA FOREST SERVICE SHASTA TRINITY NATIONAL FOREST 3644 AVTECH PARKWAY REDDING CA 96002 US	52	EA		
0002	SCBA Fit Tests Shasta-Trinity National Forest Requisition No: 1164368 Delivery Location Code: 9A28 USDA FOREST SERVICE SHASTA TRINITY NATIONAL FOREST 3644 AVTECH PARKWAY REDDING CA 96002 US	143	EA		
0003	Spirometry Tests Shasta-Trinity National Forest Requisition No: 1164368 Delivery Location Code: 9A28 USDA FOREST SERVICE Continued ...	143	EA		

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE		32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE			32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
			32g. E-MAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
33. SHIP NUMBER	34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT	37. CHECK NUMBER
☐ PARTIAL ☐ FINAL			☐ COMPLETE ☐ PARTIAL ☐ FINAL	
38. S/R ACCOUNT NUMBER	39. S/R VOUCHER NUMBER	40. PAID BY		
41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT		42a. RECEIVED BY (<i>Print</i>)		
41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER		41c. DATE	42b. RECEIVED AT (<i>Location</i>)	
			42c. DATE REC'D (YY/MM/DD)	42d. TOTAL CONTAINERS

CONTINUATION SHEET

REFERENCE NO. OF DOCUMENT BEING CONTINUED

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NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
0004	SHASTA TRINITY NATIONAL FOREST 3644 AVTECH PARKWAY REDDING CA 96002 US Travel to Shasta-Trinity National Forest 204 West Alma Mt. Shasta, CA 96097 Requisition No: 1164368 Delivery Location Code: 9A28 USDA FOREST SERVICE SHASTA TRINITY NATIONAL FOREST 3644 AVTECH PARKWAY REDDING CA 96002 US	1	EA		
0005	Travel to Shasta-Trinity National Forest 11 Trinity Street Hayfork, CA 96041 Requisition No: 1164368 Delivery Location Code: 9A28 USDA FOREST SERVICE SHASTA TRINITY NATIONAL FOREST 3644 AVTECH PARKWAY REDDING CA 96002 US	1	EA		
0006	Travel to Shasta-Trinity National Forest 14225 Holiday Road Redding, CA 96003 Requisition No: 1164368 Delivery Location Code: 9A28 USDA FOREST SERVICE SHASTA TRINITY NATIONAL FOREST 3644 AVTECH PARKWAY REDDING CA 96002 US	1	EA		
0007	SCBA New User Physicals & Health Screenings Modoc NF Requisition No: 1165615 Delivery Location Code: 9A10 USDA FOREST SVC DIST RANGER 54 BIG VALLEY RANGER DIST PO BOX 885 ADIN CA 96006 US Continued ...	35	EA		

CONTINUATION SHEET

REFERENCE NO. OF DOCUMENT BEING CONTINUED

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NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
0008	SCBA Fit Tests - Modoc NF Requisition No: 1165615 Delivery Location Code: 9A10 USDA FOREST SVC DIST RANGER 54 BIG VALLEY RANGER DIST PO BOX 885 ADIN CA 96006 US	35	EA		
0009	Spirometry Tests - Modoc NF Requisition No: 1165615 Delivery Location Code: 9A10 USDA FOREST SVC DIST RANGER 54 BIG VALLEY RANGER DIST PO BOX 885 ADIN CA 96006 US	35	EA		
0010	Travel to Modoc National Forest South Fork Fire Station 700 South Main Street Alturas, CA 96101 Requisition No: 1165615 Delivery Location Code: 9A10 USDA FOREST SVC DIST RANGER 54 BIG VALLEY RANGER DIST PO BOX 885 ADIN CA 96006 US	1	EA		
0011	Travel to Modoc National Forest Canby Fire Station 22478 State Hwy 299 Canby, CA 96105 Requisition No: 1165615 Delivery Location Code: 9A10 USDA FOREST SVC DIST RANGER 54 BIG VALLEY RANGER DIST PO BOX 885 ADIN CA 96006 US	1	EA		
0012	SCBA New User Physicals & Health Screenings Klamath National Forest Requisition No: 1162854 Delivery Location Code: 91W9 Continued ...	45	EA		

NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	KLAMATH NATIONAL FOREST KLAMATH NATIONAL FOREST 1030 SOUTH MAIN STREET YREKA CA 96097 US				
0013	Spirometry Tests - Klamath National Forest Requisition No: 1162854 Delivery Location Code: 91W9 KLAMATH NATIONAL FOREST KLAMATH NATIONAL FOREST 1030 SOUTH MAIN STREET YREKA CA 96097 US	99	EA		
0014	SCBA Fit Tests - Klamath National Forest Requisition No: 1162854 Delivery Location Code: 91W9 KLAMATH NATIONAL FOREST KLAMATH NATIONAL FOREST 1030 SOUTH MAIN STREET YREKA CA 96097 US	99	EA		
0015	Travel to Klamath National Forest Fleet Maintenance Yard 1030 Main Street Yreka, CA 96097 Requisition No: 1162854 Delivery Location Code: 91W9 KLAMATH NATIONAL FOREST KLAMATH NATIONAL FOREST 1030 SOUTH MAIN STREET YREKA CA 96097 US	1	EA		

Scope of Work

A Physician, Registered Nurse, Nurse Practitioner, or Physician Assistant will provide on-site (mobile) SCBA physicals and mask fit testing, spirometry and audiometry testing, and respiratory examinations for employees of the Klamath, Modoc, and Shasta-Trinity National Forests.

Licensing Requirements

- Physician, Registered Nurse, Nurse Practitioner, or Physician Assistant
- Medical Director

The Medical Director and Standard Operating Procedures allow the Registered Nurse to complete the SCBA paperwork, provided it is a "No-Trigger" completed questionnaire.

Triggers are described as:

- Cardiac symptoms/history: chest pain, exertional dyspnea beyond expected conditioning, syncope/near-syncope, palpitations, known heart disease, prior MI, CHF, arrhythmia, stroke/TIA.
- Hypertension: uncontrolled, symptomatic, or requiring medication with concerns (route for PLHCP review).
- Pulmonary disease/symptoms: COPD/emphysema/chronic bronchitis, frequent wheeze, chronic cough, reduced exercise tolerance, recent respiratory infection with ongoing symptoms.
- Neurologic risk: seizure disorder, unexplained loss of consciousness.
- Metabolic risk: diabetes on insulin or history of severe hypoglycemia.
- Psychological tolerance: panic disorder/claustrophobia or prior intolerance to tight-fitting respirators.
- Prior SCBA/respirator issues: dizziness, heat illness, fainting, inability to tolerate SCBA, or any prior restriction.
- Musculoskeletal/other limitations: conditions that may impair donning/doffing or carrying SCBA (significant neck/back/shoulder issues), or any condition the RN believes may impair safe SCBA use.

Contractor Requirements

Instructions to Physician

Forest Service employees will be using self-contained breathing apparatus (SCBA). This protection will be worn when firefighters enter potentially hazardous atmospheric environments. This will consist of physically demanding work and wearing firefighter personal protective equipment (PPE) in high temperature environments. As the use of breathing apparatus increases the work of the heart and lungs, a medical assessment is requested to determine if the employee is physically capable of performing this work.

Medical Requirements

A Physician, Registered Nurse, Nurse Practitioner, or Physician Assistant will determine what physical and psychological conditions are pertinent. The employee's initial and follow up medical status pertaining to the use of respiratory equipment will be reviewed and documented by the PLHCP.

A spirometry test and/or an exercise stress testing (EST) may be used in addition to medical history and physical examination to establish a baseline record.

Medical Evaluation Components

- Physical examination
- Medical history
- Heart disease

- High blood pressure
- Lung disease (pulmonary disease) and sinus conditions
- Skin problems
- Seizures
- Substance abuse
- Claustrophobia or anxiety
- Eyeglasses or contacts
- Pulmonary testing *
- EKG *

*PLHCP discretion with approval from Unit SCBA Program Manager

OSHA regulation [1910.134\(e\)\(1\)](#) (Ctrl+Click on text for link)

General. The employer shall provide a medical evaluation to determine the employee's ability to use a respirator before the employee is fit tested or required to use the respirator in the workplace. The employer may discontinue an employee's medical evaluations when the employee is no longer required to use a respirator.

Equipment and Conditions

- Self-Contained Open Circuit Breathing Apparatus weighing up to 35 lbs.
- The Employee will use SCBA/PPE for training and fire suppression purposes, no more than one to two hours in duration under normal circumstances.
- The expected physical work effort is heavy lifting (50 lbs. from floor to waist or shoulder), pulling fire hose, lifting tools, Heavy Physical Exertion. (>5 mets.)
- If required by the local unit, full Structure Fire Ensemble, including Bunker Jacket and Pants, Boots, Helmet, and protective Nomex Hood.
- Temperature and humidity; High temperatures during fire suppression activities.

The Draeger SCBA System is used by the Shasta-Trinity, Klamath, and Modoc National Forests.

The PLHCP will recommend in writing the employee's ability to wear SCBA/PPE with any use restrictions and periodicity of medical evaluations in Attachment 01_ANSI Z88.6-2006 10 Special Testing 10.1.

The Physician or PLHCP will evaluate and grant written medical approval for each employee prior to respirator use. The PLHCP will use a medical questionnaire or conduct an initial medical examination that obtains the same information as in Attachment 01_ANSI Z88.6-2006 10 Special Testing 10.1. The questionnaire will be presented confidentially and in a manner that the employee can understand. The Forest Service will provide employees with an opportunity to discuss the questionnaire and exam results with the PLHCP.

The following information will be supplied by the Forest Service to the PLHCP prior to the professional's recommendation concerning an employee's ability to safely use respiratory protection, in Attachment 01_ANSI Z88.6-2006 10 Special Testing 10.1.

Physician Instructions contain the following information:

1. The type and weight of the respirator to be used by the employee.
2. The duration and frequency of respirator use.
3. The expected physical work effort.

4. Additional protective clothing and equipment to be worn.
5. Temperature and humidity extremes that may be encountered.

Frequency of Evaluation

According to the American National Standards Institute Z-88.6-2006, an initial medical evaluation shall be performed using a medical history (Attachment 01_ANSI Z88.6-2006 10 Special Testing 10.1 or interview and examination that obtain the same information as the medical questionnaire. In addition, a follow-up questionnaire or interview should be used to identify medical conditions that develop after the initial evaluation. This questionnaire may be administered prior to an annual fit test. The frequency of this follow-up interval should be determined by the PLHCP.

Any information provided previously to the PLHCP does not need to be provided for a subsequent medical evaluation if the information and the PLHCP remain the same. The Forest Service will provide the PLHCP with a copy of this plan and the applicable regulatory requirements mandating this Plan [29 CFR 1910.134 \(e\)](#) (Ctrl+Click on text for link) if requested by the PLHCP.

Special Testing

Spirometry or Exercise Stress Testing (EST) may be authorized if the PLHCP needs information in addition to a history and physical examination. Spirometry results do not in themselves indicate fitness or lack of fitness to safely use an SCBA. For accurate assessment, spirometry should be performed in accordance with the most recent recommendations of the American Thoracic Society.

(Reference; Attachment 01_ANSI Z88.6-2006 10 Special Testing 10.1).

Contractor Required Equipment

- Spirometer: Clinical grade device utilizes a pressure sensor that accurately measures PEF, FEV1, and FVC
- SCBA Fit Test Machine: Quantitative respirator fit testing
- Medical equipment to measure firefighters' physiological biometrics

Deliverables

Certificates/Results shall be provided to examinees. Only the patient may receive information including PII. Data provided to the Government shall **not** include Personally Identifiable information (PII).

The written recommendation from the PLHCP regarding an employee's ability to wear a respirator will provide only the following information:

- Whether or not the employee is medically able to safely use the SCBA.
- The need, if any, for follow-up medical evaluations and the interval those evaluations should occur.
- A statement that the PLHCP has provided the employee with a copy of the written recommendation.

Travel

Travel to the following locations will be required for the performance of services:

Shasta Trinity National Forest

Mount Shasta: 204 West Alma, Mt. Shasta 96097

Hayfork: 11 Trinity Street, Hayfork, CA 96041

Shasta Lake: 14225 Holiday Road, Redding, CA 96003

Modoc National Forest

South Fork Fire Station: 700 South Main Street, Alturas, CA 96101

Canby Fire Station: 22478 State Hwy 299, Canby, CA 96105

Klamath National Forest

Fleet Maintenance Yard: 1030 Main Street Yreka, CA 96097

Solicitation Attachments

The following documents are included as attachments to this solicitation and can be accessed via the "Attachments/Links" section of the posting.

- Attachment 01_ANSI Z88.6-2006 10 Special Testing 10.1
- Attachment 02 _Schedule of Items
- Attachment 03_WageDetermination 2015-5677 Rev29 Siskiyou_Modoc_Trinity
- Attachment 04_WageDetermination 2015-5627 Rev25 Shasta

Schedule of Items: See Attachment 02 – Schedule of Items

Schedule Notes:

1. Travel Fee: The contractor can charge the travel fee once per trip (may include multiple services on the same day/same location). If the contractor is not given 24 hours advanced notice of appointment cancellation, the Travel Fee may be charged in lieu of an appointment cancellation fee.

2. Award may be made by location. (Line items 1, 2, 3, 4, 5, 6 will be awarded together; 7, 8, 9, 10, 11 together; 12, 13, 14, 15 together). Locations may be awarded to separate contractors. If you wish to quote on an "all or none" basis, or to limit a potential award to you to a minimum number of items, make notes in the boxes indicated below. You may still quote if you cannot service all locations. Leave blank any line item you cannot provide.

Federal Acquisition Regulation (FAR) and United States Department of Agriculture Acquisition Regulation (AGAR) Clauses and Provisions

The clauses and provisions contained herein are applicable to any order awarded as a result of this solicitation. The terms and conditions set forth herein supersede all other terms and conditions. Acceptance of the order in accordance with (IAW) FAR 12.201-1(b)(2) constitutes acceptance of all terms and conditions contained herein.

As part of the Revolutionary FAR Overhaul (RFO), system updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in this solicitation. Contracting officers will rely on representations from offers based on provisions in the solicitation. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

52.252-2 Clauses Incorporated by Reference

Feb 1998

This solicitation incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also the full text of the clause may be accessed electronically at Internet address <https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52>

- 52.212-4 Terms and Conditions—Commercial Products and Commercial Services (Nov 2025)
 - ☐ Alternate I (Nov 2025) of 52.212-4
- 52.203-17 Contractor Employee Whistleblower Rights (Nov 2023)
- 52.203-19 Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017)
- 52.222-50 Combating Trafficking in Persons (Nov 2025)
 - ☐ Alternate I (Nov 2025) of 52.222-50
- 52.226-8 Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024)
- 52.232-39 Unenforceability of Unauthorized Obligations (Jun 2013)
- 52.232-40 Providing Accelerated Payments to Small Business Subcontractors (Mar 2023)
- 52.233-3 Protest After Award (Sep 2025)
- 52.233-4 Applicable Law for Breach of Contract Claim (Sep 2025)
- 52.240-91 Security Prohibitions and Exclusions (Nov 2025)
 - ☐ Alternate I (Nov 2025) of 52.240-91
- 52.244-6 Subcontracts for Commercial Products and Commercial Services (Nov 2025)

The following clauses are applicable if checked:

- ☐ 52.203-6 Restrictions on Subcontractor Sales to the Government (Jun 2020) with Alternate I (Nov 2021) of 52.203-6
- ☐ 52.203-13 Contractor Code of Business Ethics and Conduct (Nov 2021)
- ☐ 52.204-9 Personal Identity Verification of Contractor Personnel Jan 2011
- ☒ 52.204-13 System for Award Management—Maintenance (Nov 2025)
- ☐ 52.204-91 Contractor identification (Nov 2025)
- ☒ 52.209-6 Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment (Sep 2025)

- ☐ 52.209-9 Updates of Publicly Available Information Regarding Responsibility Matters (Sep 2025)
- ☒ 52.209-10 Prohibition on Contracting with Inverted Domestic Corporations (Sep 2025)
- ☐ 52.219-4 Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Nov 2025)
- ☒ 52.219-6 Notice of Total Small Business Aside (Nov 2025)
 - ☐ Alternate I (Mar 2020).
- ☐ 52.219-8 Utilization of Small Business Concerns (Nov 2025)
- ☐ 52.219-9 Small Business Subcontracting Plan (Nov 2025)
 - ☐ Alternate III (Nov 2025) of 52.219-9.
 - ☐ Alternate IV (Nov 2025) of 52.219-9
- ☐ 52.219-14 Limitations on Subcontracting (Nov 2025)
- ☐ 52.219-16 Liquidated Damages—Subcontracting Plan (Nov 2025)
- ☐ 52.219-33 Nonmanufacturer Rule (Nov 2025)
- ☒ 52.222-3 Convict Labor (June 2003)
- ☐ 52.222-19 Child Labor—Cooperation with Authorities and Remedies (Nov 2025)
- ☐ 52.222-35 Equal Opportunity for Veterans (Nov 2025)
 - ☐ Alternate I (Jul 2014) of 52.222-35
- ☒ 52.222-36 Equal Opportunity for Workers with Disabilities (Nov 2025)
 - ☐ Alternate I (Jul 2014) of 52.222-36
- ☐ 52.222-37 Employment Reports on Veterans (Nov 2025)
- ☐ 52.222-40 Notification of Employee Rights Under the National Labor Relations Act (Dec 2010)
- ☒ 52.222-41 Service Contract Labor Standards (Aug 2018)
- ☒ 52.222-42 Statement of Equivalent Rates for Federal Hires (May 2014)

This Statement is for Information Only:
It is not a Wage Determination

Employee Class	Monetary Wage -- Fringe Benefits
Physician	\$56.53

- ☐ 52.222-43 Fair Labor Standards Act and Service Contract Labor Standards -- Price Adjustment (Multiple Year and Option Contracts) (Aug 2018)
- ☐ 52.222-44 Fair Labor Standards Act and Service Contract Labor Standards -- Price Adjustment (May 2014)
- ☐ 52.222-51 Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014)
- ☐ 52.222-53 Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (Nov 2025)
- ☐ 52.222-54 Employment Eligibility Verification (Nov 2025)
- ☒ 52.222-62 Paid Sick Leave Under Executive Order 13706 (Jan 2022)
- ☐ 52.223-2 Reporting of Biobased Products Under Service and Construction Contracts (Nov 2025)

- ☐ 52.223-9 Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008)
 - ☐ Alternate I (May 2008) of 52.223-9
- ☐ 52.223-11 Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (Nov 2025)
- ☐ 52.223-12 Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (Nov 2025)
- ☒ 52.223-23 Sustainable Products and Services (Nov 2025)
- ☒ 52.224-3 Privacy Training (Jan 2017)
 - ☐ Alternate I (Jan 2017) of 52.224-3
- ☐ 52.225-1 Buy American-Supplies (Nov 2025)
 - ☐ Alternate I (Oct 2022) of 52.225-1
- ☐ 52.225-3 Buy American--Free Trade Agreements--Israeli Trade Act (Nov 2025)
 - ☐ Alternate II (Nov 2025) of 52.225-3.
 - ☐ Alternate III (Nov 2025) of 52.225-3.
 - ☐ Alternate IV (Oct 2022) of 52.225-3
- ☐ 52.225-5 Trade Agreements (Nov 2023)
- ☐ 52.225-19 Contractor Personnel in a Designated Operational Area or Supporting a Diplomatic or Consular Mission outside the United States (May 2020)
- ☐ 52.225-26 Contractors Performing Private Security Functions Outside the United States (Oct 2016)
- ☐ 52.226-4 Notice of Disaster or Emergency Area Set-Aside (Nov 2007)
- ☐ 52.226-5 Restrictions on Subcontracting Outside Disaster or Emergency Area (Aug 2025)
- ☐ 52.229-12 Tax on Certain Foreign Procurements
- ☐ 52.232-29 Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021)
- ☐ 52.232-30 Installment Payments for Commercial Products and Commercial Services (Nov 2021)
- ☒ 52.232-33 Payment by Electronic Funds Transfer— System for Award Management (Oct 2018)
- ☐ 52.232-34 Payment by Electronic Funds Transfer—Other Than System for Award Management (Jul 2013)
- ☐ 52.232-36 Payment by Third Party (Nov 2025)
- ☐ 52.237-2 Protection of Government Buildings, Equipment, and Vegetation (Apr 1984)
- ☐ 52.237-3 Continuity of Services (Jan 1991)
- ☐ 52.240-92 Security Requirements (Nov 2025)
- ☐ 52.240-93 Basic Safeguarding of Covered Contractor Information Systems (No 2025)
- ☐ 52.247-64 Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2025)
 - ☐ Alternate I (Apr 2023) of 52.247-64.
 - ☐ Alternate II (Nov 2021) of 52.247-64

AGAR Clauses

452.203-71 Anti-Discrimination and Diversity, Equity, and Inclusion (DEI) Compliance (Dec 2025)

(a) By entering into this contract, the Contractor certifies that:

- (1) It is compliant with all applicable Federal anti-discrimination laws and the Equal Protection principles of the U.S. Constitution, and it will remain compliant for the duration of the contract.
- (2) Neither it nor any subcontractor or teaming partner operates or funds any program, policy, or initiative that promotes DEI in a manner that violates any applicable Federal anti-discrimination laws, including but not limited to Title VI and VII of the Civil Rights Act of 1964, or the Equal Protection principles of the U.S. Constitution, and the Contractor and any subcontractor or teaming partner will not do so for the duration of the contract.

(b) If the Contractor participates in, facilitates, or funds programs that implicate Title VI of the Civil Rights Act of 1964 or Title IX of the Education Amendments of 1972, as amended, including but not limited to grants to or for schools, colleges, universities, 4-H programs, non-governmental organization (NGO) programs, sports programs, and education-related grants to prisons or other detention facilities, the Contractor certifies that it will remain compliant with those laws, including the requirements set forth in Executive Order 14168, Defending Women from Gender Ideology Extremism and Restoring Biological Truth to the Federal Government, and Executive Order 14173, Ending Illegal Discrimination and Restoring Merit-Based Opportunity.

(c) The Contractor affirms that the above requirements are conditions of payment that go to the essence of the contract and are therefore material terms of the contract. Payments under the contract are predicated on compliance with the above requirements, and therefore the Contractor is not eligible for funding under the contract or to retain any funding under the contract absent compliance with the above requirements.

(d) This certification reflects a change in the Government's position regarding the materiality of the foregoing requirements and therefore any prior payment of similar claims does not reflect the materiality of the foregoing requirements to this contract.

(e) Submission of a knowing false statement relating to Contractor's compliance with the above requirements and/or eligibility for the contract may subject the Contractor to liability under the False Claims Act, 31 U.S.C. § 3729, and/or criminal liability, including under 18 U.S.C. §§ 287 and 1001.

(f) The Contractor must include the provisions of this clause in all subcontract solicitations.

(g) Failure on the part of the Contractor or its subcontractors to comply with the terms of this clause may be grounds for the Contracting Officer to terminate this contract for default.

(End of Clause)

AGAR 452.203-72 Unenforceable Supplier Terms

(a) Definitions.

Supplier terms mean provisions customarily drafted by vendors of supplies or services and intended to create a binding legal obligation on the end user. The term applies:

- (1) Regardless of the format or style of the document. For example, supplier terms may appear in standard terms of sale or lease, Terms of Service (TOS), End User License Agreement (EULA), or another similar legal instrument or agreement, and may be presented as part of a proposal or quotation responding to a solicitation for a contract or order or otherwise become effective after the contract date.
- (2) Regardless of the media or delivery mechanism used. For example, supplier terms may be presented as one or more paper documents or may appear on a computer or other electronic device screen during a purchase, software installation, other product delivery, registration for a service, or another transaction.

(b) **Applicability.** When any supply or service acquired under this contract is subject to supplier terms, the supplier terms are deemed part of the contract only to the extent they are consistent with this clause. Supplier terms that conflict with any part of this clause, the contract, or Federal law are void and will not be considered incorporated into a contract, even if they are physically present in a contract documentation or systems. In the event of any inconsistency between supplier terms and this contract, this clause and the terms of the Government contract shall govern and supersede any supplier terms in all cases.

(c) **Authorization Required.** Notwithstanding any other provision, no supplier terms shall be binding on the Government unless the term is expressly authorized on the USDA Supplier Terms Authorization Form signed by the Contracting Officer, and the completed Authorization Form has been incorporated into the contract.

(d) **Unenforceable Terms.** Any supplier terms that impose obligations or restrictions inconsistent with applicable Federal law are unenforceable against the Government and deemed stricken from the agreement. This includes, but is not limited to, any clause that:

- (1) Requires the Government to pay future fees, penalties, interest, legal costs, early-termination fees, cancellation fees, minimum purchase commitments, true-up payments, seat-count minimums, usage minimums, continued-use charges, or any other financial obligation not expressly authorized by the contract.
- (2) Requires the Government to indemnify the contractor or any other entity.
- (3) Restricts the Government's ability to obtain similar supplies or services from another source.
- (4) Imposes any penalty, financial or otherwise, based on the Government's decision not to exercise an option.
- (5) Subjects the United States Government to the laws of any U.S. state, territory, district, municipality, or foreign nation, except where Federal law expressly permits such application.
- (6) Requires dispute resolution in a forum or venue other than one prescribed by applicable Federal law.
- (7) Establishes a period of limitations for bringing an action that differs from that provided by applicable Federal law.

- (8) Grants the contractor rights to use, mine, access, aggregate, analyze, or otherwise exploit Government data, usage data, or metadata.
- (9) Deems the Government to have accepted initial or revised terms based on silence, continued performance, or failure to object.
- (10) Grants the supplier the right to audit Government facilities, systems, records, or use of the product or service, except as expressly authorized by the contract and applicable Federal law.
- (11) Requires the Government to accept supplier security requirements, network access requirements, monitoring, penetration testing, or other technical or security measures.
- (12) Permits the supplier to suspend, degrade, or terminate access to products or services based on alleged non-payment, alleged breach, automated security triggers.
- (13) Limits the Government's right to use, install, access, test, evaluate, or transfer the licensed product or service in any manner consistent with the contract and Federal law.
- (14) Requires the Government to store, process, maintain, or transmit data in a particular geographic location, or permits the supplier to transfer Government data outside the United States, except as expressly authorized by applicable Federal law.
- (15) Authorizes the supplier to use the Government's name, seal, trademark, logo, or any reference to the Government as an end user or customer for marketing, publicity, promotional activities, press releases, or similar purposes.
- (16) Incorporates by reference, or requires the Government to accept, terms or conditions imposed by any third party, subcontractor, or upstream service provider, unless such terms are expressly incorporated into the contract by bilateral modification.
- (17) Limits, conditions, or negates the contractor's performance obligations, service levels, or remedies through a supplier-provided service level agreement (SLA).
- (18) Uses Government data, usage data, metadata, prompts, content, or interactions to train, fine-tune, improve, or derive any artificial intelligence, machine learning, or automated decision-making model.
- (19) Subjects the Government to automated decision-making, automated risk scoring, automated content moderation, or any algorithmic process that may affect access, performance, or rights under the contract.
- (20) Utilizes artificial intelligence or algorithmic tools that produce decisions, recommendations, or outputs affecting contract performance without providing transparency, explainability, auditability, and bias-mitigation consistent with applicable Federal law and policy.

(21) Profiles, tracks, or analyzes Government user behavior, preferences, communications, or interactions for personalization, marketing, or algorithmic optimization purposes.

(e) Non-binding Actions. Neither the Government nor any Government authorized end user is deemed to have consented to any term, condition, or clause by virtue of its inclusion in the supplier agreement or through the use of clickwrap, browsewrap, "I agree" mechanisms, or similar means. Execution of such mechanisms does not bind the Government or its authorized end users to any unenforceable terms.

(f) End user. The supplier agreement shall bind the ordering activity as the end user to the extent it does not conflict with the terms of this clause, but it shall not bind or impose personal liability on any Government employee or any person acting on behalf of the Government in their personal capacity.

(g) Law and disputes. The supplier agreement is governed by Federal law.

(h) Statutory exception. This clause does not apply to indemnification or any other payment by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(i) Continued performance. The supplier or licensor shall not unilaterally revoke, terminate, or suspend any rights granted to the Government except as allowed by the contract. If the supplier or licensor believes the ordering activity to be in breach of the supplier agreement, it shall pursue its rights under the Contract Disputes Act or other applicable Federal statute while proceeding diligently with performance, pending final resolution of any dispute in accordance with the Disputes Clause at FAR 52.212-4(d) or FAR 52.233-1, as applicable.

(j) Arbitration. Binding arbitration shall not be used unless specifically authorized by agency guidance.

(k) Equitable or injunctive relief. Equitable or injunctive relief, including the award of attorney fees, costs, or interest, may be awarded against the United States Government only when explicitly provided by statute (e.g., the Prompt Payment Act or the Equal Access to Justice Act).

(l) Revisions to supplier agreements. Any revisions to the supplier agreement must be incorporated into the contract using a bilateral modification. Unilateral revisions are not binding on the Government.

(m) No automatic renewals. If any license or service tied to periodic payment is provided under the supplier agreement (e.g., annual software maintenance or annual lease term), such license or service shall not renew automatically upon expiration of its current term without prior express written consent from an authorized Government representative.

(n) Indemnification. Any clause of the supplier agreement requiring the supplier or licensor to defend or indemnify the end user is amended to provide that the U.S. Department of Justice has the sole right to represent the United States in any such action, in accordance with 28 U.S.C. 516.

(o) Taxes or surcharges. Any taxes or surcharges which the supplier or licensor seeks to pass along to the Government as end user will be governed by the terms of the associated Government contract or order and must be submitted to the Contracting Officer for a determination of applicability prior to invoicing unless specifically agreed otherwise.

(p) Non-assignment. The supplier agreement may not be assigned, nor may any rights or obligations thereunder be delegated, without the Government's prior approval, except as expressly permitted by FAR 52.212-4(b) or FAR 52.232-23, as applicable.

(q) Confidential information. If the supplier agreement includes a confidentiality clause, such clause is amended to state that neither the agreement nor the contract price list, as applicable, shall be deemed "confidential information." Issues regarding release of "unit pricing" will be resolved consistent with the Freedom of Information Act. Notwithstanding anything in the supplier agreement to the contrary, the Government may retain any confidential information as required by law, regulation, or its internal document retention procedures for legal, regulatory, or compliance purposes; provided, however, that all such retained confidential information will continue to be subject to the confidentiality obligations of the supplier agreement.

(r) Conflict with Federal law. If any other language, provision, or clause of the supplier agreement conflicts or is inconsistent with Federal law or the terms and conditions of this contract, such language, provisions, or clauses will be considered null and void and will not be binding on the United States Government.

(End of Clause)

452.204-70 Modification for Contract Closeout (Apr 2026)

(a) If unliquidated funds in the amount of \$1000 or less remain on the contract, the Contracting Officer (Contracting Officer) may issue a unilateral modification for deobligation. The contractor will receive a copy of the modification but is not required to provide a signature. The Contracting Officer will immediately proceed with contract closeout upon completion of the period of performance, receipt and acceptance of supplies or services, and final payment.

(b) For commercial contracts not exceeding the simplified acquisition procedure threshold under FAR 12.001(c), if more than \$1,000 in unliquidated funds remain at closeout, the Contracting Officer will issue a bilateral deobligation modification. Only the modification requires the contractor's signature, though a Release of Claims may be requested. If the required documents are not returned within 60 days, the Contracting Officer will issue a unilateral modification and proceed with closeout once performance is complete, acceptance is confirmed, and final payment is made.

(c) For all other non-commercial or non-cost-reimbursement contracts, if more than \$1,000 in unliquidated funds remain at closeout, the Contracting Officer will issue a bilateral deobligation modification and a Release of Claims, both requiring contractor signature. If these documents are not returned within 120 days, the Contracting Officer will issue a unilateral modification and proceed with closeout upon completion of performance, acceptance, and final payment.

(End of Clause)

Solicitation Information

Award Type

It is anticipated that a firm-fixed price contract with an estimated period of performance of May 11th, 2026, to September 1st, 2026, shall be awarded as a result of this synopsis/solicitation. The total duration of this contract shall not exceed four (4) months.

The Government reserves the right to make more than one award (multiple awards) for different line items, if, after considering the additional administrative cost to the Government of awarding and administering separate purchase orders, it is determined that the multiple awards will result in the best value to the Government. For purposes of evaluating the cost of making multiple awards, it is assumed that the administrative cost of awarding and administering a purchase order is \$500.

Award may be made by location. (Line items 1, 2, 3, 4, 5, 6 will be awarded together; 7, 8, 9, 10, 11 together; 12, 13, 14, 15 together). Locations may be awarded to separate contractors. If you wish to quote on an "all or none" basis, or to limit a potential award to you to a minimum number of items, make notes in the boxes indicated below. You may still quote if you cannot service all locations. Leave blank any line item you cannot provide.

Quoters must have an active entity registration in the System for Award Management in order to submit a quote. <https://www.sam.gov/SAM/>.

52.212-1 Instructions to Offerors - Commercial Products and Commercial Services (Nov 2025)

Quotes submitted in response to this solicitation shall include a technical and price proposal.

a) Technical Proposal – At a minimum technical proposal shall include:

I. Past Performance – Offerors shall provide Past Performance for three (3) *relevant* contracts (references) completed within the preceding five (5) year period.

Technical Capability – Provide a list of key personnel, including certifications asserting status as a Physician, Registered Nurse, Nurse Practitioner, or Physician Assistant for all employees assigned to this project. The narrative response to the technical capability should be in as much detail as the quoter considers necessary to fully explain their proposed technical approach or method. The technical capability should reflect a clear understanding of the nature of the work being undertaken and an understanding of the acceptable quality level.

Vendor must provide the following required equipment during testing:

Required Equipment

- Spirometer: Clinical grade device utilizes a pressure sensor that accurately measures the following: PEF, FEV1, and FVC
- SCBA Fit Test Machine: Quantitative respirator fit testing
- Medical equipment to measure firefighters' physiological biometrics

Certification to verify status as a -Physician, Registered Nurse, Nurse Practitioner, or Physician Assistant is required.

Licensing Requirements

- Physician, Registered Nurse, Nurse Practitioner, or Physician Assistant
- Medical Director

b) Price Proposal – Include the following: 1) the completed Schedule of Items and 2) acknowledgement of any amendments to this solicitation by following the instructions that accompany the amendment(s).

Questions

Questions shall be submitted via email to Danielle Dawson at danielle.dawson@usda.gov and are due no later than May 8th, 2026, at 2:00 PM Pacific Time. This will ensure enough time to respond before the solicitation period ends. Must include the solicitation name and number as the subject line of the email.

Evaluation Criteria & Basis for Award

The Government intends to evaluate quotations using a **comparative evaluation** methodology. This means quotations will be compared against one another to determine which provides the **best value** to the Government, based on the evaluation factors outlined in this solicitation.

The Government may consider quotations that exceed minimum requirements and offer additional value **or benefits**, even if they are not the lowest priced. However, formal tradeoff procedures will not be conducted.

Evaluation Factors

Relevant Experience:

The Government will consider the extent to which the vendor demonstrates experience performing work similar in scope, size, and complexity to the requirements of this solicitation. Greater consideration will be given to vendors whose experience reflects a strong alignment with the Government's needs.

Past Performance:

The Government will evaluate the offeror's past performance to assess the degree of confidence that the offeror will successfully perform the required effort. The evaluation will consider **recency**, **relevancy**, and **quality** of past performance.

Recency: Past performance information must be from efforts performed within the **last five (5) years** from the date of solicitation issuance. More recent performance may be given greater weight.

Relevancy: The Government will assess how closely the offeror's past performance aligns with the scope, size, complexity, and type of work described in this solicitation. The Government will make an independent determination of relevancy of the data provided or obtained. Relevancy will be rated as:

- Very Relevant – Essentially the same scope and complexity.
- Relevant – Similar in scope and complexity.
- Somewhat Relevant – Some similarities in scope or complexity.
- Not Relevant – Little or no similarity.

Quality of Performance: The Government will evaluate the quality of the offeror's performance on prior contracts, including:

- Timeliness of performance
- Technical quality
- Business relations
- Customer satisfaction

Sources may include CPARS, past performance questionnaires, and other verifiable references. The Government reserves the right to limit or expand the number of references it decides to contact and to contact references other than those provided by the offeror.

Confidence Assessment: Based on the recency, relevancy, and quality of past performance, the Government will assign one of the following confidence ratings:

- High Confidence – Government has a high expectation of successful performance.
- Some Confidence – Government has a reasonable expectation of success.
- Low Confidence – Government has concerns about successful performance.

Note: Due to the sensitive nature of the required service (medical evaluation and certification for use of SCBA equipment by firefighters in dangerous situations) offerors without relevant past performance will be rated with a **Low Confidence** rating.

Price:

The offeror shall provide pricing as requested in Attachment 02_Schedule_Of_Items. Please carefully review the notes in the Schedule of Items. The offeror's quotation will be evaluated in accordance with FAR 12.204, to determine if it is fair and reasonable.

52.252-1 Solicitation Provisions Incorporated by Reference Feb 1998

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): <https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52>

- 52.203-18 Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation (Jan 2017)
- 52.209-2 Prohibition on Contracting with Inverted Domestic Corporations - Representation (Sep 2025)
- 52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law (Sep 2025)
- 52.240-90 Security Prohibitions and Exclusions Representations and Certifications (Nov 2025)

The following provisions are applicable if checked:

- ☐ 52.203-11 Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions (Sep 2024)
- ☒ 52.204-7 System for Award Management—Registration (Nov 2025)
 - ☐ Alternate I (Nov 2025) to 52.204-7
- ☐ 52.204-90 Offeror Identification (Nov 2025)
- ☐ 52.207-6 Solicitation of Offers from Small Business Concerns and Small Business Teaming Arrangements or Joint Ventures (Multiple-Award Contracts) (Aug 2024)
- ☐ 52.209-12 Certification Regarding Tax Matters (Oct 2025)
- ☐ 52.219-2 Equal Low Bids (Nov 2025)
- ☐ 52.222-18 Certification Regarding Knowledge of Child Labor for Listed End Products (Feb 2021)
- ☐ 52.222-48 Exemption from Application of the Service Contract Labor Standards for Maintenance, Calibration, or Repair of Certain Equipment—Certification (Nov 2025)
- ☐ 52.222-52 Exemption from Application of the Service Contract Labor Standards for Certain Services-Certification (Nov 2025)
- ☐ 52.222-56 Certification Regarding Trafficking in Persons Compliance Plan (Oct 2020)
- ☐ 52.223-4 Recovered Material Certification (May 2008)
- ☐ 52.225-2 Buy American Certificate (Oct 2022)
- ☐ 52.225-4 Buy American-Free Trade Agreements-Israeli Trade Act Certificate (Nov 2025)
- ☐ 52.225-6 Trade Agreements-Certificate (Feb 2021)
- ☐ 52.226-3 Disaster or Emergency Area Representation (Nov 2007)
- ☐ 52.229-11 Tax on Certain Foreign Procurements—Notice and Representation (Jul 2025)

AGAR Provisions

(a) By submission of its offer, the offeror certifies that:

- (3) It is compliant with all applicable Federal anti-discrimination laws and the Equal Protection principles of the U.S. Constitution.
- (4) Neither it nor any proposed subcontractor or teaming partner operates or funds any program, policy, or initiative that promotes DEI in a manner that violates any applicable Federal anti-discrimination laws, including but not limited to Title VI and VII of the Civil Rights Act of 1964, or the Equal Protection principles of the U.S. Constitution.

(b) If the offeror participates in, facilitates, or funds programs that implicate Title VI of the Civil Rights Act of 1964 or Title IX of the Education Amendments of 1972, as amended, including but not limited to grants to or for schools, colleges, universities, 4-H programs, non-governmental organization (NGO) programs, sports programs, and education-related grants to prisons or other detention facilities, by submission of its offer, the offeror certifies that it is compliant with those laws, including the requirements set forth in Executive Order 14168, Defending Women from Gender Ideology Extremism and Restoring Biological Truth to the Federal Government, and Executive Order 14173, Ending Illegal Discrimination and Restoring Merit-Based Opportunity.

(c) The offeror affirms that the above requirements are conditions of payment that go to the essence of the contract and are therefore material terms of the contract. Payments under the contract are predicated on compliance with the above requirements, and therefore the offeror will not be eligible for funding under the contract or to retain any funding under the contract absent compliance with the above requirements.

(d) This certification reflects a change in the Government's position regarding the materiality of the foregoing requirements and therefore any prior payment of similar claims does not reflect the materiality of the foregoing requirements to this contract.

(e) Submission of a knowing false statement relating to offeror's compliance with the above requirements and/or eligibility for the contract may subject the offeror to liability under the False Claims Act, 31 U.S.C. § 3729, and/or criminal liability, including under 18 U.S.C. §§ 287 and 1001.

(f) Failure on the part of the offeror or its subcontractors to comply with the terms of this clause may be grounds for the Contracting Officer to terminate the contract for default.

(End of Provision)

NOTICE FOR FILING AGENCY PROTESTS
United States Department of Agriculture (USDA) Ombudsman Program

The USDA is committed to issuing solicitations and awarding contracts in a fair and prompt manner. The Ombudsman Program for Agency Protests (OPAP) was established to address protest issues within the agency, providing an alternative to costly and time-consuming litigation. Operating independently, OPAP offers relief comparable to that granted by the Government Accountability Office (GAO). Interested parties are encouraged to resolve concerns through USDA's internal Alternative Dispute Resolution (ADR) process before pursuing external forums such as the GAO. Concerns may be addressed informally or through a formal agency protest filed with either the Contracting Officer or the Ombudsman.

Informal Forum with the Ombudsman

1. **Initial Point of Contact:** Interested parties who believe a specific USDA procurement is unfair or otherwise defective should first direct their concerns to the applicable Contracting Officer.
2. **Escalation:** If the Contracting Officer is unable to address their concerns, interested parties are encouraged to contact the USDA Ombudsman for Agency Protests. Under this informal process, the agency is not required to suspend contract award performance. Utilization of the informal forum does not suspend any time requirement for filing a formal protest with the agency or other forums.
3. **Required Information:** To ensure a timely response, interested parties should provide the following information to the Ombudsman: solicitation/contract number, contracting office, Contracting Officer, and solicitation closing date (if applicable).

Formal Agency Protest with the Ombudsman

1. **Effort to Resolve:** Prior to submitting a formal agency protest, protesters must first use their best efforts to resolve their concerns with the Contracting Officer through open and frank discussions.
2. **Independent Review:** If the protester's concerns remain unresolved, an Independent Review is available by the Ombudsman. The protester may file a formal agency protest with either the Contracting Officer or, alternatively, with the Ombudsman under the OPAP program. Contract awards or performance will be suspended during the protest period unless justified in writing for urgent and compelling reasons or determined in writing to be in the best interest of the Government.
3. **Resolution Timeline:** The agency's goal is to resolve protests within 35 calendar days from the date of filing.
4. **Required Information:** Protests shall include the information set forth in FAR 33.104(a)(3). Failure to submit the required information may result in a delay or dismissal of the protest.
5. **Timeliness:** Protests must be filed within the timeframes specified in FAR 33.104.
6. **Submission:** Formal protests under the OPAP program should be submitted electronically to SPE.inquiry@usda.gov and the Contracting Officer.

Election of Forum. By initiating a protest with the USDA, the protester agrees not to pursue the same matter with the Government Accountability Office (GAO) or any other external forum while the agency protest is pending. If a protest is filed externally, the agency protest will be dismissed.